

NOTICE AND PROOF OF CLAIM FOR DISABILITY BENEFITS

DB-450 6-22

Read instructions on page 2 carefully to avoid a delay in processing. You must answer all questions in Part A and questions 1 through 3 in Part B. Health care providers must complete Part B on page 2.

PART A - CLAIMANT'S INFORMATION (Please Print or Type)

1. Last Name: Fetes First Name: John MI: F
2. Mailing Address (Street & Apt #): 94 Idlewood Dr
City: Tombawanda State: NY Zip: 14150 Country: US
3. Daytime Phone #: 716.644.1869 Email Address: JFF231@AOL.com
4. Social Security #: 018 60 7591 5. Date of Birth: 12-31-63 6. Gender: ☒ M ☐ F ☐ X
7. Describe your disability (if injury, also state how, when and where it occurred): _____

8. Date you became disabled: 10/19/2022 Did you work on that day? ☐ Yes ☒ No

Have you recovered from this disability? ☐ Yes ☐ No If Yes, date you were able to return to work: ____/____/____

Have you since worked for wages or profit? ☐ Yes ☒ No If Yes, list dates: _____

9. Name of last employer prior to disability. If more than one employer in previous eight (8) weeks, name all employers. Average Weekly Wage is based on all wages earned in last eight (8) weeks worked.

LAST EMPLOYER PRIOR TO DISABILITY			PERIOD OF EMPLOYMENT		Average Weekly Wage (Include Bonuses, Tips, Commissions, Reasonable Value of Board, Rent, etc.)
Firm or Trade Name	Address	Phone Number	First Day	Last Day Worked	
<u>Johnstone Supply</u>	<u>Cooper Ave, Tonawanda</u>	<u>716.644.1869</u>	Mo. Day Yr.	Mo. Day Yr.	
OTHER EMPLOYER (during last eight (8) weeks)			PERIOD OF EMPLOYMENT		Average Weekly Wage (Include Bonuses, Tips, Commissions, Reasonable Value of Board, Rent, etc.)
Firm or Trade Name	Address	Phone Number	First Day	Last Day Worked	
			Mo. Day Yr.	Mo. Day Yr.	
			Mo. Day Yr.	Mo. Day Yr.	

10. My job is or was: Counter Sales 11. Union Member: ☐ Yes ☒ No If "Yes": _____
Occupation Name of Union or Local Number

12. Were you claiming or receiving unemployment prior to this disability? ☐ Yes ☒ No

If you did not claim or if you claimed but did not receive unemployment insurance benefits after LAST DAY WORKED, explain reasons fully: _____

If you did receive unemployment benefits, provide all periods collected: _____

13. For the period of disability covered by this claim:

A. Are you receiving wages, salary or separation pay: ☐ Yes ☒ No

B. Are you receiving or claiming:

1. Unemployment Benefits? ☐ Yes ☒ No

2. Paid Family Leave: ☐ Yes ☒ No

3. Workers' compensation for work-connected disability ☐ Yes ☒ No

4. No-Fault motor vehicle accident? ☐ Yes ☒ No or personal injury involving third party? ☐ Yes ☒ No

5. Long-term disability benefits under the Federal Social Security Act for this disability: ☐ Yes ☒ No

IF "YES" IS CHECKED IN ANY OF THE ITEMS IN 13, COMPLETE THE FOLLOWING:

I have: ☐ received ☐ claimed from: _____ for the period: ____/____/____ to: ____/____/____

14. In the year (52 weeks) before your disability began, have you received disability benefits for other periods of disability? ☐ Yes ☐ No

If yes, Paid by: _____ from: ____/____/____ to: ____/____/____

15. In the year (52 weeks) before your disability began, have you received Paid Family Leave? ☐ Yes ☐ No

If yes, Paid by: _____ from: ____/____/____ to: ____/____/____

16. If you became disabled while employed or within four weeks of your last day worked, did your employer provide you with your rights under Disability Law within 5 days of your notice or request for disability forms? ☐ Yes ☐ No

I hereby claim Disability Benefits and certify that for the period covered by this claim I was disabled. I have read the instructions on page 2 of this form and that the foregoing statements, including any accompanying statements are, to the best of my knowledge, true and complete.

Claimant's Signature

Date

Claimant's email address

An individual may sign on behalf of the claimant only if he or she is legally authorized to do so and the claimant is a minor, mentally incompetent or incapacitated. If signed by other than claimant, print information below and complete and submit Form OC-110A, Claimant's Authorization to Disclose Workers' Compensation Records.

On behalf of Claimant

Address

Relationship to Claimant

PART B - HEALTH CARE PROVIDER'S STATEMENT (Please Print or Type)

THE HEALTH CARE PROVIDER'S STATEMENT MUST BE FILLED IN COMPLETELY. THE ATTENDING HEALTH CARE PROVIDER SHALL COMPLETE AND RETURN TO THE CLAIMANT WITHIN SEVEN (7) DAYS OF RECEIPT OF THIS FORM. For item 7-d, you must give estimated date. If disability is caused by or arising in connection with pregnancy, enter estimated delivery date in item 7-e. **INCOMPLETE ANSWERS MAY DELAY PAYMENT OF BENEFITS.**

1. Last Name: FETES First Name: JOHN MI:

2. Gender: ☒ M ☐ F ☐ X 3. Date of Birth: 12 / 31 / 1963

4. Diagnosis/Analysis: SPINAL STENOSIS, LUMBAR REGION Diagnosis Code: M48.062

a. Claimant's symptoms: RIGHT BUTTOCK AND LEG PAIN

b. Objective findings: SPINAL STENOSIS

5. Claimant hospitalized?: ☐ Yes ☒ No From: / / To: / /

6. Operation indicated?: ☒ Yes ☐ No a. Type LUMBAR MICRODISCECTOMY b. Date 10 / 19 / 2022

7. ENTER DATES FOR THE FOLLOWING	MONTH	DAY	YEAR
a. Date of your first treatment for this disability	07	01	2022
b. Date of your most recent treatment for this disability	09	26	2022
c. Date Claimant was unable to work because of this disability	10	19	2022
d. Date Claimant will again be able to perform work (Even if considerable question exists, estimate date. Avoid use of terms such as unknown or undetermined.)	EST. 12	19	2022
e. If pregnancy related, please check box and enter the date ☐ estimated delivery date OR ☐ actual delivery date	N/A		

8. In your opinion, is this disability the result of injury arising out of and in the course of employment or occupational disease?
☐ Yes ☒ No If "Yes", has Form C-4 been filed with the Board? ☐ Yes ☐ No

I certify that I am a:

PHYSICIAN

NEW YORK

201503

(Physician, Chiropractor, Dentist, Podiatrist, Psychologist, Nurse-Midwife)

Licensed or Certified in the State of

License Number

JOHN POLLINA, MD

10/14/2022

Health Care Provider's Printed Name

Health Care Provider's Signature

Date

40 GEORGE KARL BLVD #100 WILLIAMSVILLE, NY 14221

Health Care Provider's Address

(716) 218-1000
Phone #

IMPORTANT NOTICE TO CLAIMANT- READ THESE INSTRUCTIONS CAREFULLY

PLEASE NOTE: Do not date and file this form prior to your first date of disability. In order for your claim to be processed, Parts A and B must be completed.

1. If you are using this form because you became disabled while employed or you became disabled within four (4) weeks after termination of employment, your completed claim should be mailed within thirty (30) days to your employer or your last employer's insurance carrier. You may find your employer's disability insurance carrier on the Workers' Compensation Board's website, www.wcb.ny.gov, using Employer Coverage Search.

2. If you are using this form because you became disabled after having been unemployed for more than four (4) weeks, your completed claim should be mailed to: **Workers' Compensation Board, Disability Benefits Bureau, PO Box 9029, Endicott, NY 13761-9029.** If you answered "Yes" to question 13.B.3, please complete and attach Form DB-450.1.

If you do not receive a response within 45 days or if you have questions about your disability benefits claim, please call your employer's insurance carrier. For general information about disability benefits, please visit www.wcb.ny.gov or call the Board's Disability Benefits Bureau at (877) 632-4996.

Notification Pursuant to the New York Personal Privacy Protection Law (Public Officers Law Article 6-A) and the Federal Privacy Act of 1974 (5 U.S.C. § 552a). The Workers' Compensation Board's (Board's) authority to request that claimants provide personal information, including their social security number, is derived from the Board's investigatory authority under Workers' Compensation Law (WCL) § 20, and its administrative authority under WCL § 142. This information is collected to assist the Board in investigating and administering claims in the most expedient manner possible and to help it maintain accurate claim records. Providing your social security number to the Board is voluntary. There is no penalty for failure to provide your social security number on this form; it will not result in a denial of your claim or a reduction in benefits. The Board will protect the confidentiality of all personal information in its possession, disclosing it only in furtherance of its official duties and in accordance with applicable state and federal law.

HIPAA NOTICE - In order to adjudicate a workers' compensation claim or disability benefits claim, WCL 13-a(4)(a) and 12 NYCRR 325-1.3 require health care providers to regularly file medical reports of treatment with the Board and the insurance carrier or employer. Pursuant to 45 CFR 164.512 these legally required medical reports are exempt from HIPAA's restrictions on disclosure of health information.

Disclosure of Information: The Board will not disclose any information about your case to any unauthorized party without your consent. If you choose to have such information disclosed to an unauthorized party, you must file with the Board an original signed Form OC-110A, "Claimant's Authorization to Disclose Workers' Compensation Records". This form is available on the WCB website (www.wcb.ny.gov) and can be accessed by clicking the "Forms" link. If you do not have access to the internet please call (877) 632-4996 or visit our nearest Customer Service Center to obtain a copy of the form. In lieu of Form OC-110A, you may also submit an original signed, notarized authorization letter.

An employer or insurer, or any employee, agent, or person acting on behalf of an employer or insurer, who KNOWINGLY MAKES A FALSE STATEMENT OR REPRESENTATION as to a material fact in the course of reporting, investigation of, or adjusting a claim for any benefit or payment under this chapter for the purpose of avoiding provision of such payment or benefit SHALL BE GUILTY OF A CRIME AND SUBJECT TO SUBSTANTIAL FINES AND IMPRISONMENT.

PART C- EMPLOYER'S STATEMENT

Instructions: Complete this form in its entirety for your employee claiming disability benefits. Any missing or incomplete information could result in delays processing their claim. **For NEW claims, Parts A and B must be submitted with this statement.**

1. Employee's full name: JOHN F. FETES
2. Employee's Social Security Number: 078 - 60 - 7591 Age: 58
3. Their occupation: COUNTER SALES ASSOCIATE
4. Their role: ☒ Employee ☐ Proprietor ☐ Partner ☐ Spouse of Employer ☐ Owner ☐ Co-owner
5. Date they last worked: / / 5.1 Date they returned to work: / /
6. Date employee's wages ceased: / /
7. Were wages continued during disability? ☐ Yes ☐ No Date/Type:
Note: If wages continued were a result of the employee using accrued sick time, vacation time, or paid time off, please indicate the type and date used, and attach to this sheet.
8. If wages were continued, is reimbursement requested to the employer? ☐ Yes ☒ No
Note: Employers may only be reimbursed if the employee used sick time, or if you continued their salary during leave.
9. Is the disability due to their job (work-related)? ☐ Yes ☒ No
10. Is the employee a member of a union that provides NYS disability benefits? ☐ Yes ☒ No
if yes, please provide Union name and address:
11. Provide a breakdown of this employee's 8 weeks wages immediately **PRIOR** to their disability, starting with the week the disability began.

Date	# of Days Worked	Amount (gross wages) wages includes tips, value of board/lodging, and commissions
¹ 10/21/22	5	892.36
² 10/14/22	5	841.21
³ 10/7/22	5	864.80
⁴ 9/30/22	5	877.15
⁵ 9/23/22	5	870.31
⁶ 9/16/22	5	864.36
⁷ 9/9/22	5	868.33
⁸ 9/2/22	5	880.24
Total:		6958.76

12. Employee's date of hire: 03 / 25 / 2019
13. Status: ☒ Full-time ☐ Part-time
14. Is employee a full-time High School Student?
☐ Yes ☒ No
15. Days usually worked:
☒ Mon ☒ Tue ☒ Wed ☒ Thu ☒ Fri ☐ Sat ☐ Sun
16. Does employee contribute to their disability premium?
☐ Yes: ☒ No
if yes, please specify dollar amount or specific percentage. If you leave this question blank we will assume they do not contribute.
17. Does employee work for anyone else besides your company?
☐ Yes ☒ No

18. Has employee made a claim for disability benefits or paid family leave within the past 52 weeks prior to the date this disability began? ☐ Yes ☒ No *If yes, please provide details below:*
Disability Benefits: from / / to / /
Paid Family Leave: from / / to / /
19. If this employee received unemployment benefits, date the benefit was last received? / /
20. If this employee is no longer in your employment, select reason: ☐ labor dispute ☐ lack of work ☐ discharged ☐ resigned
Please provide detail:

Business name (including any DBA/trade name):
WALLACE SUPPLY, LLC DBA JOHNSTONE SUPPLY

Business address:
9 COOPER AVE, TONAWANDA, NY 14150

Federal Employer Identification Number (FEIN):
45 - 2967608

I have read and acknowledge the fraud warning in the instructions on page 2 of the DB450 form.

Signature: W. A. Maynard Title: HR DIRECTOR

Phone: (585) 969-1472 Date: 10 / 20 / 2022

Email: AMAYNARD@JSWALLACEGROUP.COM Policy Number: D654765

Return completed claim form (including Parts A and B) to ShelterPoint Life one of 3 ways:

Fax: 516-504-6414 Email: claimforms@shelterpoint.com Mail: ShelterPoint, 1225 Franklin Ave-Ste. 475, Garden City, NY 11530

